

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507058	GUTIERREZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY AMARO YAVE GUTIERREZ

Tentative Ruling: Granted.

Plaintiff is granted attorney fees in the reduced, but reasonable amount of \$6,930.00 and costs in the amount of \$705.21. Defendant is ordered to pay fees and costs within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This Song-Beverly action arises out of Plaintiff Amaro Yave Gutierrez' ("Plaintiff") purchase of a new 2024 Chevrolet Silverado 1500 ("Vehicle"), which was sold with a warranty issued by Defendant General Motors, LLC ("Defendant"). Plaintiff alleged that after its purchase, the Vehicle exhibited numerous serious defects and nonconformities to warranty.

Accordingly, on September 19, 2025, Plaintiff filed a Complaint against Defendant, asserting causes of action for: (1) Breach of the Implied Warranty of Merchantability; (2) Breach of Express Warranty; (3) Failure to Promptly Repurchase Product; and (4) Failure to Commence Repairs Within a Reasonable Time and Complete Them Within 30 Days.

On March 10, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

Plaintiff now moves for an award of \$10,642.71 in attorney fees and costs, calculated as \$9,937.50 in attorney fees using the lodestar method (including \$1,875.00 in anticipated fees) and \$705.21 in incurred costs and expenses.

In opposition, Defendant argues the Court should reduce the requested award because counsel's hourly rate and expended time are unreasonably excessive. Defendant further contends that several time entries should not be recoverable as legal fees because they include time spent on business overhead and administrative tasks.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Here, Plaintiff accepted Defendant's C.C.P. § 998 offer, which states that Plaintiff are the prevailing party and that Defendant shall pay Plaintiff's attorney fees, costs, and expenses upon separate motion. (Hoddick Decl., ¶ 5.)

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

In the present matter, the procedural history includes only a Complaint, Answer, and Notice of Settlement. There is no evidence that the parties engaged in any law and motion, or that the case involved anything more complicated than a routine Song-Beverly claim.

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Larry R. Hoddick, ¶ 6, counsel expended 13.5 hours at an hourly rate of \$625.00, incurring a lodestar of \$8,437.50.

As previously discussed with Plaintiff's counsel at hearing on attorney fee motions on the same subject matter, counsel's hourly rate does not appear to be reasonable for Riverside County. This court has previously granted \$550.00 an hour.

Further, a review of the billing records reveals that counsel billed for pre-retention services, such as meeting with the potential client. Plaintiff argues that client intake services are recoverable because they are reasonably incurred in connection with the commencement of a Song-Beverly action. (Civ. Code § 1794(d).) However, "by definition, the term 'attorney fees' implies the existence of an attorney-client relationship, i.e., a party receiving professional services from a lawyer." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1094, 1092.) "Whether fees are incurred is evidenced by an obligation to pay attorney fees, the existence of an attorney-client relationship...." (*Dzwonkowski v. Spinella* (2011) 200 Cal.App.4th 930, 935.) Accordingly, the court strikes 1.0 hour from Attorney Hoddick's billing.

Upon review of the allegations set forth in the Complaint, 1.2 hours is excessive. A more reasonable amount is .5 hours. Serving the complaint is also a clerical task. Accordingly, the court strikes 0.9 hour from Attorney Hoddick's billing.

Counsel then seeks 3.0 hours in anticipated fees to review the opposition, draft the reply, and attend the hearing on this motion. However, counsel already billed 3.0 hours for drafting the initial fee motion. Accordingly, the court strikes 2.0 hours from the anticipated fees, and awards only 1.0 hour in anticipated fees.

As for the remaining time entries, they are reasonable under the circumstances. Defendant's challenges for unnecessary/overbilled tasks, discovery, etc. are not supported. As such, the court awards Plaintiff's counsel the reasonably reduced amount of \$6,930.00 in attorney fees, represented by 12.6 hours at a rate of \$550.00/hour.

Costs

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. Under the Song-Beverly Act, the Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.)

Here, the underlying action was resolved after Plaintiff accepted Defendant’s § 998 offer. C.C.P. § 998 provides: “Not less than 10 days prior to commencement of trial . . . , any party may serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time. The written offer shall include a statement of the offer, containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted. Any acceptance of the offer . . . shall be in writing and shall be signed by counsel for the accepting party or, if not represented by counsel, by the accepting party.” (C.C.P. § 998(b) [emphasis added].) Accordingly, the terms of Defendant’s § 998 offer govern the parties’ settlement, including Plaintiff’s recoverable costs. Although neither party attaches a copy of the § 998 offer, Defendant acknowledges that the offer provided for “reasonable fees/costs in the amount of \$3,500 or an amount to be determined by motion.” (Kay Decl., ¶ 10.)

Plaintiff has not filed a separate memorandum of costs, but seeks to recover \$705.21 in costs through this motion. Defendant seeks to strike service of process fees (\$50.00), additional court filing fees (\$94.66), and motion filing fees (\$87.25).

Defendant argues that the service of process fees (\$50.00) were optional, and that it has already paid for the Complaint to be filed. However, C.C.P. § 1033.5(a)(4) allows for the recovery of service of process fees.

Defendant then argues that Plaintiff has not provided an adequate description for the additional court filing fees (\$94.66) and motion filing fees (\$87.25). However, Plaintiff attaches receipts for e-filing a proof of service (\$22.30) and notice of settlement of the entire case (\$24.12.) (Hoddick Decl., Exh. 2.) In his reply, Plaintiff contends that the receipts for the \$87.25 motion filing fee, \$24.12 filing fee for the reply brief, and \$24.12 filing fee for the request for dismissal were not yet available at the time the motion was filed. Accordingly, Plaintiff’s costs for filing fees are reasonably incurred.